

Significant International Environmental Law Developments: 2022–2023

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1. INTRODUCTION

The seriousness of the environmental crises we face are becoming increasingly clear as each year passes. Temperatures are rising, with predictions that the global average temperature is likely to exceed 1.5°C in the next five years.¹ Climate change also compounds existing pressures that we place on the natural environment, leading to additional threats to biodiversity. The situation will only get worse unless transformational change takes place. In this context, a critical question is whether international law is sufficiently nimble to affect such change in time.

This is one of the questions that has been recently considered by the High-Level Advisory Board on Effective Multilateralism (HLABEM), established by the UN Secretary-General to develop concrete proposals to advance the themes addressed in the *Our Common Agenda Report* published in 2021.² The outcome of this process is a report titled ‘A Breakthrough for People and Planet’ which calls for ‘a less hierarchical, more networked system wherein decision-making is distributed, and where the efforts of a large number of different actors are harnessed towards a collective mission’.³ There is an emphasis on inclusiveness and particularly gender equality, which is mirrored in other developments discussed below.⁴ The report identifies six necessary ‘shifts’ that must take place, including ‘deliver[ing] for people and planet by regaining balance with nature and providing clean energy for all’.⁵ The specific proposals under this title include the conclusion of a pact for people and planet, reform of the global trade, investment and intellectual property system, and a stronger role for the United Nations Environment Programme in the intergovernmental system.⁶ The report also emphasises the need for appropriate accountability mechanisms ‘that [hold] all actors responsible and generates behavioural change at the

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1 ‘Global Temperatures set to reach new records in next five years’, World Meteorological Organisation Press Release No 17052023, 17 May 2023, available at <<https://public.wmo.int/en/media/press-release/global-temperatures-set-reach-new-records-next-five-years>> accessed 31 July 2023.

2 United Nations Secretary-General, *Our Common Agenda* (United Nations 2021).

3 High-Level Advisory Board on Effective Multilateralism, *A Breakthrough for People and Planet: Effective and Inclusive Global Governance for Today and the Future* (United Nations 2023) 6.

4 *ibid* 13.

5 *ibid* 7.

6 *ibid* 24–28.

global level.⁷ These proposals should be read alongside the more general recommendations for strengthening the multilateral system with an emphasis on greater participation, particularly of women, youth and indigenous groups, and more effective decision-making through a movement towards 'qualified majority, double majority or non-unanimous definitions of consensus voting systems'.⁸

Of course, these are not the first calls for radical reform of the international system. In his 1992 essay on international environmental law-making, Sir Geoffrey Palmer argued that nations need to surrender some sovereignty in order to achieve more effective international environmental governance and in this light, he suggested the establishment of an International Environmental Organisation modelled on the International Labour Organisation.⁹ More recently, proposals for a global pact on the environment included a draft text for a new instrument that has not yet gained much traction with states.¹⁰ It remains to be seen how palatable this newly presented recipe for change will be to states, who will have to decide whether they are willing to concede control over international law-making in favour of a more effective and equitable global order.

In the meantime, international environmental law continues to develop at a slow pace. Nevertheless, 2022–23 has seen some notable breakthroughs in diplomatic negotiations in the environmental field. The following sections will provide a summary of several significant developments in international environmental law between May 2022 and July 2023, with a particular focus on biodiversity, climate change and environmental rights. There has been more limited international case law on environmental matters in the past year, but the survey highlights several eagerly awaited judicial decisions that are expected in the year to come.

2. BIODIVERSITY BREAKTHROUGHS

The global biodiversity regime often stands in the shadow of its more prominent sibling, the climate change regime. However, major developments in the biodiversity regime hit the headlines twice in 2022–23.

Firstly, the fifteenth Conference of the Parties (COP) to the Convention on Biological Diversity (CBD)¹¹ adopted its new strategic plan for the period 2022–2030.¹² The so-called Kunming-Montreal Global Biodiversity Framework (GBF) seeks to deliver progress towards the overarching vision of the Convention, namely 'by 2050, biodiversity is valued, conserved, restored and wisely used, maintaining ecosystem services, sustaining a healthy planet and delivering benefits essential for all people'.¹³ To achieve this vision, transformational change is required, particularly as the current trend is towards continuing biodiversity loss. Indeed, the last strategic plan can only be considered a failure, as the vast majority of targets were either not met or only partially met.¹⁴ It is therefore no surprise that the new GBF emphasises the need for urgent action across the whole of society to reverse biodiversity loss and restore ecosystems.¹⁵ The GBF is structured around four long-term goals relating to the 2050 vision accompanied

⁷ *ibid* 24. Later in the report, the panel recommends *inter alia* annual reporting requirements to the General Assembly for all environmental conventions, special rapporteur to investigate alleged violations of the right to a clean and healthy environment, modernisation of the International Court of Justice and inclusion of ecocide in the statute of the International Criminal Court.

⁸ *ibid* 20.

⁹ Sir Geoffrey Palmer, 'New Ways to Make International Environmental Law' (1992) 86 AJIL 259–283.

¹⁰ See <<https://globalpactenvironment.org/en/>> accessed 31 July 2023.

¹¹ 1992 Convention on Biological Diversity 1760 UNTS 79.

¹² CBD COP Decision 15/4, 19 December 2022.

¹³ *ibid* para 10.

¹⁴ See Secretariat of the Convention on Biodiversity, *Global Biodiversity Outlook 5: Summary for Policy Makers* (2020).

¹⁵ See particularly CBD COP Decision 15/4 (n12) Annex, para 9 setting out its 'theory of change', and para 11 setting out the 'mission of the framework'.

by ‘23 action-orientated global targets for urgent action over the decade to 2030’.¹⁶ Particular highlights include:

- Ensure that at least 30% of degraded ecosystems are under effective restoration (target 2)
- Ensure that at least 30% of terrestrial, inland water and coastal and marine areas are effectively conserved and managed through systems of protected areas (target 3)
- Ensure action to halt human induced extinction of known threatened species (target 4)
- Reduce pollution risks from all sources to levels that are not harmful to biodiversity and ecosystem functions and services, with a particular focus on excess nutrients, pesticides and highly hazardous chemicals (target 7)

Alongside these specific biodiversity targets, the GBF also establishes a clear value system for implementation of the framework, including an emphasis on a human-rights based approach¹⁷ and, echoing the report of the HLABEM, ‘gender equality and empowerment of women and girls’.¹⁸

CBD Parties are expected to revise their national biodiversity strategies to align with the new targets and the GBF explicitly recognises that achievement of the goals will depend upon the provision of ‘adequate, predictable and easily accessible financial resources’.¹⁹ Implementation of the GBF will be overseen through a reporting procedure and a ‘global review of collective progress’ to take place at COP 17 and COP 19.²⁰ This process would seem to be modelled on the ‘global stocktake’ under the Paris Agreement,²¹ adapted to a biodiversity context, and it is emphasised that it will take place in a ‘facilitative, non-intrusive, non-punitive manner, respecting national sovereignty, and avoiding placing undue burden on Parties, in particular developing countries’.²² Indeed, it must be remembered that the GBF is only a decision of the CBD COP and it does not establish legally binding commitments for states. At the same time, there is a legal instrument which underpins the GBF and, despite its notably open-textured language, it can be asked whether more could be done to hold states to account on the legal plane for their compliance with the CBD.

The second major breakthrough for global biodiversity conservation was the conclusion of a new legally binding Agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, colloquially referred to as the ‘BBNJ Agreement’.²³ The treaty was formally adopted on 19 June 2023, following a long and difficult negotiation process. Indeed, the fact that states were able to agree on the text at all is something to be celebrated, particularly in the current geopolitical atmosphere. The Agreement is designed to address perceived gaps in coverage or implementation of the 1982 United Nations Convention on the Law of the Sea (UNCLOS),²⁴ with a focus on developing the ocean governance framework for those areas beyond national jurisdiction, namely the high seas and the International Seabed Area.

¹⁶ *ibid* para 13.

¹⁷ *ibid* para 7(g).

¹⁸ *ibid* para 7(h).

¹⁹ *ibid* para 7(p).

²⁰ Decision on Mechanisms for planning, monitoring, reporting and review, CBD COP Decision 15/6, 19 December 2022, paras 1(d) and 16.

²¹ 2015 Paris Agreement on Climate Change (UN Registration No 54113), Article 14.

²² CBD COP Decision 15/6 (n 20) para 3.

²³ See Agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction (BBNJ Agreement), Document A/CONF.232/2023/4*, 19 June 2023 (*reissued for technical reasons on 30 June 2023).

²⁴ 1982 United Nations Convention on the Law of the Sea (UNCLOS) 1833 UNTS 3.

The BBNJ Agreement covers four main substantive issues, namely marine genetic resources (MGRs), area-based management tools, environmental impact assessment (EIA), and technology transfer and capacity building. The complexity and sensitivity of many of these issues meant that compromises were necessary in order to achieve agreement and many of the provisions fall short of what some had hoped for when the process first started more than a decade ago. Nevertheless, the Agreement will introduce a new pillar in the global ocean governance architecture and therefore it is important to understand what it entails.

On EIA, the Agreement reiterates the requirement in Article 206 of UNCLOS to carry out an environmental assessment of activities which may cause 'substantial pollution of or significant and harmful changes to the marine environment'²⁵ with the addition of a number of procedural steps that must be taken, including a screening exercise and requirements to notify and consult not only other states, but also indigenous peoples, local communities, relevant global, regional and subregional and sectoral bodies, civil society, the scientific community and the public at large.²⁶ The broad range of stakeholders to be consulted under the Agreement reinforces that areas beyond national jurisdiction are to be treated as a global commons in which we all have an interest. In addition, the Agreement establishes a bespoke Scientific and Technical Body to inter alia make comments on draft environmental impact assessment reports.²⁷ The Agreement is one of the first international instruments in which 'gender balance' is explicitly included as a consideration in the composition of treaty bodies, alongside the traditional geographical representation.²⁸ Whilst a wide range of actors can have a say on a proposed activity, the BBNJ Agreement confirms that it is the party under whose jurisdiction or control a planned activity falls who shall be responsible for determining if it may proceed, and for monitoring and reviewing the impacts of authorised activities.²⁹ In other words, flag state jurisdiction remains a key principle of the new agreement, despite calls during the negotiations for greater international control over activities in areas beyond national jurisdiction.

Similar procedural mechanisms are applied to proposals to establish area-based management measures in areas beyond national jurisdiction.³⁰ In this case, a proposal may be adopted by the COP to the Agreement, which is empowered to take 'decisions on the establishment of area-based management tools, including marine protected areas, and related measures.'³¹ A key issue in the negotiations was the interrelationship between the COP and existing intergovernmental organisations and processes. According to the final text, 'in taking decisions [on area-based management tools], the [COP] shall respect the competences of, and not undermine, relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies'.³² Indeed, there is a requirement for decisions on measures to be 'compatible with those adopted by relevant legal instruments and frameworks and relevant global, regional and subregional and sectoral bodies'³³ and where a measure is within the competence of another instrument, body or framework, the COP can make recommendations, rather than taking the decision itself.³⁴ The key ingredient for the success of this mechanism will therefore be cooperation between the COP and other relevant instruments, bodies and frameworks³⁵ and it is envisaged that the COP

25 *ibid* Article 206; BBNJ Agreement (n 23) Article 30(1)(b).

26 *ibid* Article 32.

27 *ibid* Article 33(4).

28 *ibid* Article 49(2).

29 *ibid* Articles 34–37.

30 See eg Articles 19(2) (involvement of various stakeholders in the development of proposals), 20 (preliminary review of proposals by the Scientific and Technical Body), and 21 (consultations on proposals).

31 *ibid* Article 22(1)(a).

32 *ibid* Article 22(2).

33 *ibid* Article 22(1)(b).

34 *ibid* Article 22(1)(c).

35 See eg Article 22(1)(b) and 22(4).

may in some circumstances play a coordinating role amongst existing bodies.³⁶ The powers of the COP to adopt conservation measures in areas beyond national jurisdiction are also subject to a complex decision-making formula. The Agreement, whilst encouraging consensus, ultimately rests upon traditional consent-based decision-making, requiring a three-fourths majority of parties present and voting to support a decision.³⁷ The Agreement also allows individual parties to opt-out of decisions adopted by the COP provided that they give an explanation and they adopt, to the extent practicable, alternative measures or approaches that are equivalent in effect to the decision to which they have objected.³⁸ This provides some safeguards against abuse, although much will rely upon how the conditions attached to the power to object are interpreted and how they are enforced in practice.

Whilst EIA and area-based management tools were to some extent covered, albeit imperfectly, by existing law, UNCLOS contained a clear lacuna when it came to MGRs. This was perhaps one of the most controversial issues during the negotiations as it involved a debate about whether MGRs should be subject to freedom of scientific research or whether their use should be the common heritage of humankind. The final agreement adopts a compromise position, with both principles acknowledged in the general principles of the Agreement³⁹ and Part II on MGRs steering a tight course between the two. The objective of Part II is 'the fair and equitable sharing of benefits arising from activities with respect to [MGRs] and digital sequence information on [MGRs] of areas beyond national jurisdiction', as well as building the capacity of developing countries to participate in such activities.⁴⁰ The Agreement does not restrict who can access MGRs, recognising that all states may do so.⁴¹ At the same time, it requires significant transparency about proposed activities and the outcomes of these activities.⁴² A number of other obligations concerning the fair and equitable sharing of benefits apply to activities connected with MGRs collected from areas beyond national jurisdiction. Firstly, certain non-monetary benefits must be shared, including access to samples and digital sequence information 'in accordance with current international practice'.⁴³ This means that the entity collecting the resource cannot monopolise the study of the resource. Of course, individual persons or entities may still develop commercial applications based upon MGRs which may be subject to exclusive intellectual property rights. Whilst explicit language on the relationship between the Agreement and intellectual property law was eventually removed from the Agreement, it still makes clear that patents can be granted, provided that they are notified to the Clearing House Mechanism established under the Agreement.⁴⁴ Nevertheless, the holder of a patent may be under an obligation to share monetary benefits from the utilisation of MGRs, such as milestone payments or royalties, under a scheme to be agreed by the COP.⁴⁵ The full effects of this new framework are therefore still to be worked out in future negotiations. Moreover, further work may be needed on the relationship of the new arrangements with the international intellectual property regime and it is worth noting that the World Intellectual Property Organisation (WIPO) is already hosting negotiations on an international legal instrument on intellectual property issues related to genetic resources, intended to prevent the granting of erroneous patents and to ensure

36 See eg Article 26.

37 *ibid* Article 23(2). Before a vote can be taken, the COP must decide by a two-thirds majority that all efforts to reach consensus have been exhausted.

38 *ibid* Article 23(4)-(6). Objections must be renewed every three years.

39 *ibid* Article 7(b)-(c).

40 *ibid* Article 9.

41 *ibid* Article 11(1).

42 *ibid* Article 12.

43 *ibid* Article 14(2)(a)-(b). See also Article 14(3)-(4).

44 *Ibid* Article 12(8)(a).

45 *ibid* Article 14(5)-(7). Pending agreement, developed country parties are expected to make payments into a special fund.

compliance with access and benefit-sharing arrangements, such as the one that will be established under the BBNJ Agreement.⁴⁶

The final element of the BBNJ Agreement relates to capacity building and technology transfer. This is already a topic that is dealt with in depth by UNCLOS,⁴⁷ although implementation has fallen short of expectations. The BBNJ Agreement does little to impose substantive new obligations, but rather emphasises the modalities for capacity building and technology transfer,⁴⁸ particularly emphasising the need for capacity building to be country-driven and responsive to the needs of the recipient state. Moreover, it establishes a new institutional framework, including a specialist committee,⁴⁹ which will be responsible for monitoring and reviewing progress towards the objectives set by this Part of the Agreement.⁵⁰

The BBNJ Agreement has been widely welcomed, but, in order to have its desired effect, it must first enter into force. Sixty parties must ratify the Agreement in order for this to happen,⁵¹ although the Agreement can arguably only be truly successful if it achieves quasi-universal participation, given that all states have a right to carry out activities on the high seas.⁵² Political effort to support ratification will therefore be vital in the short-term.⁵³ Furthermore, although the treaty negotiations have now concluded, there is still a lot of work to do in order to give effect to these provisions through the adoption of further modalities and procedures. Some difficult issues remain on the table, particularly in the context of MGRs and operationalising the provisions on monetary benefit-sharing. In terms of how far the Agreement will contribute to reducing biodiversity loss, the real effectiveness of the Agreement will depend in large part upon how the new tools and procedures will be utilised and whether agreement can be reached on ambitious measures to protect and preserve, as well as to enhance and restore, marine ecosystems in some of the more remote parts of the planet. In this connection, the BBNJ Agreement must also be read alongside the GBF and the latter instrument should be used as a guiding star for the implementation of the Agreement.

3. CHAMPIONING CLIMATE CHANGE?

With its annual COP, the international climate change regime follows a well-established routine. In 2022, it was Egypt's turn to host the 27th COP. Much of the language of the resulting Sharm el-Sheikh Implementation Plan⁵⁴ is familiar to climate documents produced in recent years: reiteration of the fact that impacts of climate change will be much lower at a temperature increase of 1.5°C compared with 2°C;⁵⁵ recognition that limiting global warming to 1.5°C requires 'rapid, deep and sustained reductions in global greenhouse gas emissions';⁵⁶ and urging states to adopt more ambitious measures to reduce greenhouse gas emissions, including non-carbon dioxide emissions by 2030.⁵⁷ These pronouncements come only a year before the

46 See WIPO website: <https://www.wipo.int/tk/en/genetic/> <accessed 31 July 2023>.

47 UNCLOS, Part XIV.

48 BBNJ Agreement (n 23) Articles 42-43.

49 *ibid* Article 46(1).

50 Like the Scientific and Technical Body, composition of the Capacity-building and Transfer of Marine Technology Committee shall take into account gender balance as well as equitable geographical distribution; *ibid* Article 46(2).

51 *ibid* Article 68.

52 Whether the instrument is universally supported was cast into doubt at the time of adoption in light of the Russian statement that it did not think that the instrument was acceptable; see Report of the intergovernmental conference on an internationally legally binding instrument under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, UN Document A/Conf.232/2023/5, para 29.

53 See Kristina M Gjerde et al, 'Getting beyond yes: fast-tracking implementation of the United Nations agreement for marine biodiversity beyond national jurisdiction' (2022) *Ocean Sustainability* 1:6.

54 United Nations Framework Convention on Climate Change (UNFCCC) COP Decision 1/CP.27.

55 *ibid* para 4.

56 *ibid* para 11.

57 *ibid* para 14.

first formal global stocktake under Article 14 of the Paris Agreement, which is due to take place in 2023. Various initiatives to scale up ambition and action were agreed during the Conference, including a ‘climate ambition summit’ to be organised by the UN Secretary-General in 2023 and the Sharm el-Sheikh mitigation ambition and implementation work programme.⁵⁸ We will have to see whether these initiatives deliver real progress, although, as many reports are increasingly highlighting, the time for effective measures to mitigate climate change is running out. This is reflected in the COP documentation itself which refers to ‘accelerated action in this critical decade.’⁵⁹ The Sharm el-Sheikh Implementation Plan also underlines that ‘enhanced effective climate action should be implemented in a manner that is just and inclusive,’⁶⁰ which is another example of the increasing prominence given to inclusivity and equitable governance at the international level.⁶¹

A major breakthrough of the 27th COP was the adoption of an agreement to establish a new loss and damage fund for ‘assisting developing countries that are particularly vulnerable to the adverse effects of climate change in responding to loss and damage.’⁶² However, the COP decision does not establish a fully functioning funding arrangement, but rather establishes a ‘Transitional Committee’ to make recommendations about the modalities to operationalise the fund. Nevertheless, it takes a step beyond the text of the Paris Agreement, which addresses loss and damage in Article 8, but is silent on funding arrangements. Indeed, lack of funding in the climate regime generally remains an issue, with the COP reiterating its call for developed countries to meet their commitment to mobilise USD 100 billion per year to address the needs of developing countries within the climate change regime.⁶³

The UN Framework Convention on Climate Change⁶⁴ may be the main forum for agreeing action on climate change at the global level, but many other treaty regimes also find themselves having to address climate change as part of their broader mandate. Greenhouse gas (GHG) emissions from international shipping has been on the agenda of the International Maritime Organisation (IMO) for a number of years and July 2023 saw the adoption of a revised IMO Strategy on Reduction of GHG Emissions from Ships,⁶⁵ which is intended to be the IMO’s contribution to meeting the temperature goal under the Paris Agreement.⁶⁶ The overall ambition of the Strategy is to ‘reduc[e] GHG emissions from international shipping and, as a matter of urgency, aims to phase them out as soon as possible, while promoting...a just and equitable transition.’⁶⁷ The ultimate goal of the Strategy is reaching net-zero emissions ‘by or around, i.e. close to, 2050’, which leaves some wriggle room for states, but the Strategy also sets a (slightly) more concrete target of reducing ‘the total annual GHG emissions from international shipping by at least 20%, striving for 30%, by 2030, compared to 2008’, and to further reduce this total by 70–80% by 2040.⁶⁸ This is a major step on from the previous interim strategy which had only set an indicative target of reducing total GHG emissions from international shipping by

58 Paris Agreement COP Decision 4/CMA.4. This programme is to be ‘operationalised through focused exchanges of views, information and ideas, noting that the outcomes of the work programme will be non-prescriptive, non-punitive, facilitative, respectful of national sovereignty and national circumstances, take into account the nationally determined nature of nationally determined contributions and will not impose new targets and goals’; *ibid* para 2.

59 UNFCCC COP Decision 1/CP.27 (n 54) para 15.

60 *ibid* preamble.

61 The Implementation Plan also ‘encourages Parties to increase the full, meaningful and equal participation of women in climate action and to ensure gender-responsive implementation and means of implementation ...’; *ibid* para 53.

62 UNFCCC Decision 2/CP.27; see also Paris Agreement COP Decision 2/CMA.4.

63 UNFCCC COP Decision 13/CP.27.

64 1992 United Nations Framework Convention on Climate Change 1771 UNTS 107.

65 2023 IMO Strategy on the Reduction of GHG Emissions from Ships (2023 Strategy), Resolution MEPC.377(80), 7 July 2023.

66 See para 3.3.4.

67 *ibid* para 2.

68 *ibid* para 3.4.

at least 50% by 2050.⁶⁹ The new IMO targets are to be achieved through a mixture of technical measures and economic measures. Short-term technical measures have been put in place⁷⁰ and the Strategy sets a target of 2025 to agree on 'a basket of mid-term GHG reduction measures'.⁷¹ Thus, further negotiations still lie ahead and the Strategy makes clear that a number of factors, beyond climate mitigation, need to be taken into account, including safety aspects associated with reducing GHG emissions⁷² and impacts on states, particularly Least Developed Countries and Small Island Developing States, who may rely upon international shipping for the supply of essential goods and services.⁷³ A major focus of subsequent work will be on the design and operation of ships whilst at sea, although the Strategy also notes that gains can be achieved through port developments which facilitate access to renewable power supplies.⁷⁴

Concerns about progress on climate change have also meant that other international regimes are being invoked in order to encourage states to take action to meet the global temperature targets. Human rights litigation has been a key illustration of this trend that has been discussed in previous annual summaries of significant developments in international environmental law.⁷⁵ Yet, we are now seeing a broader range of international courts and tribunals brought into the picture. On top of the request for an advisory opinion from the International Tribunal for the Law of the Sea (ITLOS) submitted by a coalition of Small Island Developing States in December 2022,⁷⁶ further requests for advisory opinions were made in early 2023 to both the International Court of Justice (ICJ)⁷⁷ and the Inter-American Court of Human Rights (IACHR).⁷⁸ Whilst the requests to ITLOS and the IACHR are concerned with the interpretation and application of specific treaties, the request to the ICJ is framed generally, asking in the first question about 'the obligations of states under international law to ensure the protection of the climate system and other parts of the environment from anthropogenic emissions of greenhouse gases for States and for present and future generations', whilst going on to mention several particular treaties: the Charter of the United Nations, the International Covenant on Civil and Political Rights, the International Covenant on Economic, Social and Cultural Rights, the United Nations Framework Convention on Climate Change, the Paris Agreement, the United Nations Convention on the Law of the Sea—as well as more general rules of customary international law.⁷⁹ As a result, there is potentially an overlap between this request and the requests pending before the other courts and tribunals, which raises questions about how, if at all, these judicial bodies may coordinate their responses. There are also questions about how specific the answers will be, given the broad range of circumstances that they need to address. Yet, the results of these requests will only be effective if they can help to move along the climate change debate and promote further ambitious action by states to address the climate crisis.

69 Initial IMO Strategy on Reduction of GHG Emissions from Ships, Resolution MEPC.304(72) (13 April 2018) Annex, para 3.1.3.

70 See particularly International Convention on the Prevention of Pollution from Ships (MARPOL Convention), Annex VI, Part IV.

71 2023 Strategy (n 65) para 4.1.2.

72 *ibid* para 4.9.4.

73 *ibid* paras 4.10–4.14.

74 *ibid* para 4.9.7.

75 Judgments in several cases concerning climate change before the European Court of Human Rights are still pending.

76 See Request for Advisory Opinion submitted by the Commission of Small Island States, 12 December 2022. For background to the request, see James Harrison, 'Significant International Environmental Law Developments: 2021–22' (2022) 34 JEL 499, 507.

77 Request for an advisory opinion of the International Court of Justice on the obligations of States in respect of climate change, United Nations General Assembly (UNGA) Resolution 77/276, 29 March 2023.

78 Request for an advisory opinion of the Inter-American Court of Human Rights on the climate emergency and human rights submitted by Colombia and Chile, 8 January 2023. See IACHR website (in Spanish): <corteidh.or.cr/docs/opiniones/soc_1_2023_es.pdf> accessed 31 July 2023.

79 UNGA Assembly Resolution 77/276 (n77). The request goes on to ask about the legal consequences under these obligations for states where they have caused significant harm through their emissions.

4. HUMAN RIGHTS AND THE ENVIRONMENT

As well as turning their attention to climate change, international human rights courts are also familiar with addressing other forms of environmental pollution. Two recent examples are found in cases brought against Russia before the European Court of Human Rights. In both cases, the Court confirms its established jurisprudence, whilst highlighting the nuances and complexities that can arise when applying this case law to the facts of individual cases.

*Kotov and others v Russia*⁸⁰ involved a challenge by fourteen residents of the town of Klin against the failure of the Russian authorities to effectively regulate a waste management facility at Aleksinskiy quarry, run by a private company pursuant to a lease agreement with the Klin municipal administration. In particular, the residents complained of foul odours emanating from the quarry and they alleged that the waste management facility was being operated in violation of applicable environmental regulations. *Pavlov and others v Russia*⁸¹ concerned a challenge by residents of Lipetsk against a failure to regulate a number of major industrial undertakings in the city, including steelworks, a cement plant and a tractor factory. They also claimed that the operations had been carried out in violation of domestic environmental standards. Both cases raised a number of similar issues concerning the precise scope of protection afforded by the European Convention on Human Rights (ECHR)⁸² to cases of environmental pollution.

The first issue to tax the Court in both cases was the requirement to exhaust available local remedies before bringing a claim to the international level. In *Kotov*, domestic proceedings had been initiated by the applicants, but were unsuccessful, with the Klin Town Court rejecting the claims. Yet, only the first applicant, Mr Kotov, had pursued appeals against the judgment of the local court. As a result, the claims of all applicants, but Mr Kotov, were rejected.⁸³ A similar situation pertained in *Pavlov*, with only 7 out of the 22 applicants having appealed against the judgment of the District court. However, in this case, the Court held that ‘the fifteen applicants in question were absolved from the obligation to exhaust domestic remedies because they were in a very similar situation as the other seven applicants who brought the appeal and they were affected in the same way by those proceedings.’⁸⁴ What seems to separate the cases is that the affected applicants in *Kotov* had either not instigated proceedings at all or had abandoned proceedings without justification.⁸⁵ In contrast, in *Pavlov*, the Court seems to accept that there was a justification for only some of the applicants pursuing further remedies given their similarity of situation, although their reasoning on this point is vague. Indeed, Judge Lobov dissented from the decision in *Pavlov*, on the basis that no satisfactory explanation or justification had been given and explaining that, in their view, ‘allowing the applicants to proceed is tantamount to giving carte blanche to any one of the 500,000 inhabitants of the city to join any such application without first making a meaningful effort to press domestic courts for solutions.’⁸⁶

Secondly, the cases raised questions about the threshold of severity that must be met in order to bring a successful claim under Article 8 of the ECHR concerning the protection of private and family life. A similar position was taken in both cases, where the applicants had not asserted any particular medical evidence of harm, but rather they complained of being affected by the generally poor state of the environment in which they lived. It was therefore impossible for the Court to establish a clear causal link between the activities complained of and the alleged

⁸⁰ *Case of Kotov and others v Russia (Kotov)*, Applications nos 6142/18 and 13 others, Judgment, European Court of Human Rights, Third Section, 11 January 2023.

⁸¹ *Case of Pavlov and other v Russia (Pavlov)*, Application no 31612/09, Judgment, European Court of Human Rights, Third Section, 11 January 2023.

⁸² 1953 European Convention on Human Rights 213 UNTS 221.

⁸³ *Kotov* (n 80) [95].

⁸⁴ *Pavlov* (n 81) [56].

⁸⁵ *Kotov* (n 80) [90].

⁸⁶ *ibid* Dissenting opinion of Judge Lobov [5].

impacts on the applicants. Nevertheless, in *Kotov*, the Court was willing to draw upon general evidence relating to pollution levels in order to conclude that 'living in the area marked by pollution in clear excess of the applicable safety standards makes [Mr Kotov] more vulnerable to various illnesses'.⁸⁷ Moreover, the Court underlined that it is not necessary to demonstrate impacts on physical health in order to succeed in a claim under Article 8 as 'severe environmental pollution may affect individuals' well-being in such a way as to affect their private and family life adversely, without, however, seriously endangering their health'.⁸⁸ The Court accepted that the environmental nuisances of which Mr Kotov complained were not negligible and triggered Article 8 of the Convention. A similar approach was taken in *Pavlov*, but the case raised more complex issues because it was not concerned with a single facility but rather a range of polluting activities. Moreover, not all of the applicants lived within the immediate vicinity of the pollution, with several of them living up to 15 km from the operations complained of. Yet, the Court emphasised that proximity to pollution is only one of the factors to be taken into account in determining whether the threshold of seriousness has been crossed to trigger Article 8.⁸⁹ In particular, the Court highlighted evidence that Lipetsk was one of the most polluted cities in Russia with all areas of the city registering levels of pollution in excess of applicable safety standards. The Court was careful to say that the mere identification of excessive pollution levels may not be enough to trigger Article 8 in all cases,⁹⁰ but the evidence in the case at hand pointed to serious risks for the entire population over a significant period of time. The cases therefore demonstrate the willingness of the Court to set a flexible evidential threshold in cases concerning environmental pollution.

Thirdly, the Court had to determine whether the state had taken sufficient action to address the pollution in each case. *Kotov* was a simpler case given that it concerned a single facility run by one operator. The Court noted that the legal regime for waste management facilities in Russia provides for strict regulation, but the Court identified a number of legal requirements which had not been enforced by public authorities, despite evidence of non-compliance by the operator.⁹¹ However, the Court also noted that the government had been more active in overseeing the operation since 2019. Therefore the finding of a violation of Article 8 was limited to the period 2015 (when the complaint was made) to 2018. In *Pavlov*, the Court similarly carried out an analysis of what had been done by the public authorities to prevent pollution from the relevant facilities in order to assess whether they had 'approached the problem with due diligence and gave consideration to all the competing interests'.⁹² Like the situation in *Kotov*, the Court noted that these authorities had improved their performance over time by taking increased measures to monitor and promote a reduction in pollution. Indeed, the Court recognised the challenges of adopting effective measures in a timely manner when there were a number of competing interests to reconcile. However, the Court was not convinced that the state had justified the delay in action⁹³ and even when measures had been taken, the Court held that 'industrial air pollution in Lipetsk has not been sufficiently curbed, so as to prevent that the residents of that city be exposed to related health risks'.⁹⁴ The government had therefore failed to meet the requirements of Article 8. Judge Lobov also dissented on this point, suggesting that the Court had not afforded a sufficient margin of appreciation to the domestic authorities which faced 'a delicate balancing exercise between, on the one hand, the reduction of industrial pollution, and on the

87 *ibid* [107].

88 *ibid* [108].

89 *Pavlov* (n 81) [63].

90 *ibid* [68].

91 *Kotov* (n 80) [127].

92 *Pavlov* (n 81) [90].

93 See e.g. *Pavlov* (n 80) [82].

94 *ibid* [92].

other, the interest in maintaining the full operation of the core industrial enterprises on which the welfare of the whole megapolis fundamentally depend.’⁹⁵ Judge Lobov thus urged caution to prevent the jurisprudence of the Court developing in a manner that ignores ‘the fundamentally subsidiary role of the Convention mechanism.’⁹⁶ The dissenting opinion is a clear reminder of the delicate balancing exercise that the Court must carry out when interpreting and applying Convention rights to complex policy scenarios.

In both of these cases, Judge Serghides attached a concurring opinion in which they emphasised the importance of the continuing evolution of the human rights case law to address environmental challenges and they suggested the emergence of a new ‘sub-right to a healthy environment’ which should be interpreted broadly, with strict control over any interference with the right. In their separate opinion in *Pavlov*, Judge Krenc also pointed to the need to ensure that the ECHR was interpreted in light of broader developments in international law.

One such development, explicitly mentioned by Judge Krenc, was the adoption by the UN General Assembly in July 2022 of a resolution ‘recogniz[ing] the right to a clean, healthy and sustainable environment as a human right.’⁹⁷ This instrument represents a further milestone in the work on human rights and the environment that has been carried out within the UN system in recent years.⁹⁸ The precise legal implications of this instrument must be treated with caution, however. Judge Krenc, in their separate opinion in *Pavlov*, pointed out that all member states of the Council of Europe had voted in favour of the Resolution,⁹⁹ which, Judge Krenc suggested, indicated common ground between the member states that must be taken into account in interpreting the ECHR. Yet, the position of many states is more nuanced than it might seem. Thus, in their explanation of the vote on the resolution, several states, including Council of Europe members, noted that they supported the resolution but they asserted that the right has not yet attained the status of customary international law.¹⁰⁰ Indeed, it was highlighted in the United Nations General Assembly debate on the resolution that there was a need to develop a common understanding of what a right might entail.¹⁰¹ In particular, it will be interesting to reflect on how a new substantive right may go further than the jurisprudence which has seen the expansion of existing rights to an increasing range of environmental matters.

5. INTERNATIONAL WATER LAW AND ENVIRONMENTAL PROTECTION

Much of the international case law concerning the protection of the environment has emanated from cases concerning transboundary watercourses.¹⁰² A new case can now be added to that list

⁹⁵ *ibid* Dissenting opinion of Judge Lobov [19].

⁹⁶ *ibid* [21].

⁹⁷ Right to a Clean, Healthy and Sustainable Environment, UNGA Resolution 76/300, 28 July 2022, para. 1.

⁹⁸ UN Human Rights Council Resolution 48/13 (2021); UN Special Rapporteur on Human Rights and the Environment, Framework Principles on Human Rights and the Environment (2018).

⁹⁹ The Resolution was adopted by 161 votes to 0, with 8 abstentions. However, the identity of the states abstaining is significant: Belarus, Cambodia, China, Ethiopia, Kyrgyzstan*, Iran, Russia, Syria (*Kyrgyzstan later informed the Secretariat that it had intended to vote in favour).

¹⁰⁰ See eg US Government, Explanation of Position on the Right to a Clean, Healthy and Sustainable Environment Resolution, 28 July 2022, available at <<https://usun.usmission.gov/explanation-of-position-on-the-right-to-a-clean-healthy-and-sustainable-environment-resolution/>> see also UK Government, Explanation of vote on resolution on the right to a clean, healthy and sustainable environment, 28 July 2022, available at <<https://www.gov.uk/government/speeches/explanation-of-vote-on-resolution-on-the-right-to-a-clean-healthy-and-sustainable-environment>> both accessed 31 July 2023.

¹⁰¹ See UN Press Release, 28 July 2022, available at <<https://press.un.org/en/2022/ga12437.doc.htm>> accessed 31 July 2023.

¹⁰² Eg *Lac Lanoux Arbitration* (1957) 12 RIAA 281; *Case concerning the Gabčíkovo-Nagymaros Project* (1997) ICJ Reports 7; *Case concerning Pulp Mills on the River Uruguay* (2010) ICJ Reports 14; *Construction of a Road in Costa Rica along the San Juan River* (2015) ICJ Reports 665.

with the decision in the *Dispute over the Status and Use of the Waters of the Silala*.¹⁰³ The Silala River is a transboundary watercourse that begins in the Bolivian Andes, before flowing into Chile where it meets with the San Pedro River. The dispute concerned whether Bolivia had complied with relevant rules of customary international law in authorising several proposed activities on the Silala River. Bolivia also raised a number of related counter-claims about its right to remove certain infrastructure which had been installed in order to enhance the flow of the river, although the Court refused to deal with these aspects of the dispute, either because they were moot¹⁰⁴ or they concerned future hypothetical situations.¹⁰⁵

At the outset, the Court confirmed that both parties had a basic right to an equitable and reasonable sharing of the resources of the river and a concomitant duty to 'take all appropriate measures to prevent the causing of significant harm to the other Party'.¹⁰⁶ These substantive duties are accompanied by certain procedural obligations, such as requirements of notification and consultation concerning certain activities. A key issue that divided the parties was the relevant threshold to trigger these procedural obligations. Bolivia maintained that notification and consultation were only required where there was a risk of a significant harm to the other party, whereas Chile argued that there was an obligation to provide information on planned measures, regardless of whether there was a risk of harm. Chile relied in part upon Article 11 of the 1997 Convention on the Law of the Non-Navigational Uses of International Watercourses (1997 Convention),¹⁰⁷ which it suggested was a codification of customary international law. However, the Court rejected this argument, noting that the commentary of the International Law Commission (ILC) relating to Article 11 did not refer to any state practice or judicial authority to support the contention that it was a reflection of custom.¹⁰⁸ The Court also considered the relevance of Article 12 of the 1997 Convention, which provides in part:

Before a watercourse State implements or permits the implementation of planned measures which may have a significant adverse effect upon other watercourse States, it shall provide those States with timely notification thereof.

Chile argued that this provision imposed a lower threshold than a risk of significant harm, relying upon the commentary of the ILC, which had expressly stated that the threshold of significant adverse effect was lower than significant harm. The Commission had explained:¹⁰⁹

“Significant harm” is not an appropriate standard for the setting in motion of the procedures under articles 12 to 19, since use of that standard would mean that the procedures would be engaged only where implementation of the new measures might result in a conduct covered by article 7 [on the prevention of significant harm]. Thus, a watercourse State providing a notification of planned measures would be put in the position of admitting that the measures it was planning might cause significant harm to other watercourse States in conduct covered by article 7. The standard of a “significant adverse effect” is employed to avoid such a situation.

¹⁰³ *Dispute over the Status and Use of the Waters of the Silala (Chile v Bolivia) (Silala)*, Judgment, International Court of Justice, 1 December 2022.

¹⁰⁴ *ibid* [155].

¹⁰⁵ *ibid* [162].

¹⁰⁶ *ibid* [97].

¹⁰⁷ 1997 Convention on the Law of the Non-Navigational Uses of International Watercourses, UNGA Resolution 51/229, 21 May 1997.

¹⁰⁸ *Silala* (n 103) [111].

¹⁰⁹ Draft Articles on the law of the non-navigational uses of international watercourses and commentaries thereto and resolution of transboundary confined groundwater (1994 - II) *Yearbook of the International Law Commission* 89, at 111.

However, the ILC itself seems to have accepted the higher threshold of significant harm in its later work on transboundary harm, which emphasises that the whole point of consultation is to achieve acceptable solutions on minimising the risk of significant harm.¹¹⁰ This is also the position reflected in the previous jurisprudence of the Court.¹¹¹ In the case at hand, the Court confirmed this position, holding that ‘Article 12 of the 1997 Convention does not reflect a rule of customary international law relating to international watercourses that is more rigorous than the general obligation to notify and consult’¹¹² and each state is only required to notify and consult other states under customary international law ‘with regard to any planned activity that poses a risk of significant harm to that State’.¹¹³ When it comes to applying this standard to the facts, Chile’s case failed because it has not demonstrated, nor alleged, any risk of harm linked to Bolivia’s planned measures.¹¹⁴

6. CONCLUSION

Persistent diplomacy has led to a number of significant developments in the past twelve months in several important environmental treaty regimes. These hard-won gains have taken many years to achieve, but further efforts are still needed to implement and operationalise these new instruments in an effective and equitable manner, if positive results are to follow. What many of the instruments underline is the need for the whole of society to involve themselves in promoting transformational change that can benefit both people and planet. Yet, time is pressing. Urgent action is the watchword of many of the instruments. It follows that mechanisms are necessary to ensure that states actually deliver what they have promised. Bespoke monitoring mechanisms have been put in place in many global environmental regimes. For example, as noted above, 2023 will see the first round of the global stocktake of commitments under the Paris Agreement, with the expectation that ‘the outcome ... shall inform Parties in updating and enhancing, in a nationally determined manner, their actions and support...’¹¹⁵ Similar arrangements are in place to oversee the GBF. The BBNJ Agreement also foresees the establishment of an Implementation and Compliance Committee to oversee implementation in a ‘facilitative, non-adversarial and non-punitive’ manner.¹¹⁶

The question is whether such mechanisms are sufficient. Other accountability mechanisms loom in the background. For example, the requested advisory opinion from the ICJ on climate change is expected to provide clarity on ‘the legal consequences under these obligations for States where they, by their acts and omissions, have caused significant harm to the climate system and other parts of the environment’.¹¹⁷ The BBNJ Agreement also provides for compulsory litigation where states cannot settle their disputes by other means¹¹⁸ and the human rights regime has demonstrated that it can be invoked where progress cannot be achieved through other domestic or international fora. Moreover, as the HLABEM report makes clear, calls for more radical reform to the international legal system, including improved accountability mechanisms, are not going away.

110 Draft Articles on the Prevention of Transboundary Harm (2001 - II) *Yearbook of the International Law Commission* 148, 160 (Article 9).

111 *Construction of a Road in Costa Rica along the San Juan River* (n 102) [104]: ‘if the environmental impact assessment confirms that there is a risk of significant transboundary harm, the State planning the activity is required, in conformity with its due diligence obligation, to notify and consult in good faith with the potentially affected state, where that is necessary to determine the appropriate measures to prevent or mitigate that risk’.

112 *Silala* (n 103) [117].

113 *ibid* [118].

114 *ibid* [127].

115 Paris Agreement (n 21) Article 14(3).

116 BBNJ Agreement (n 23) Article 55.

117 UNGA Assembly Resolution 77/276 (n 77) para (b).

118 BBNJ Agreement (n 23) Part IX.

